

AMENDMENT No.2TO CITY SECRETARY CONTRACT No. 58012

WHEREAS, the City of Fort Worth (CITY) and *Garver LLC*, (ENGINEER) made and entered into City Secretary Contract No. 58012, (the CONTRACT) which was administratively authorized on the 21st day of August, 2022 in the amount of \$ 67,265.00; and

WHEREAS, the CONTRACT was subsequently revised by:Amendment No. 1 in the amount of \$349,055.00 which was authorized by M&C # 23-0536 on June 27, 2023; and

WHEREAS, the CONTRACT involves engineering services for the following project:

Northside III Elevated Storage Tank, CPN 104290; and

WHEREAS, it has become necessary to execute Amendment No. 2 to the CONTRACT to include an increased scope of work and revised fee.

NOW THEREFORE, CITY and ENGINEER, acting herein by and through their duly authorized representatives, enter into the following agreement, which amends the CONTRACT:

1.

Article I of the CONTRACT is amended to include the additional engineering services specified in proposal attached hereto and incorporated herein. The cost to City for the additional design services to be performed by Engineer totals \$46,076.00.

2.

Article II of the CONTRACT is amended to provide for an increase in the fee to be paid to Engineer for all work and services performed under the Contract, as amended, so that the total fee paid by the City for all work and services shall be an amount of \$462,396.00.

3.

All other provisions of the Contract, which are not expressly amended herein, shall remain in full force and effect.

EXECUTED and EFFECTIVE as of the date subscribed by the City's designated Assistant City Manager.

APPROVED:

City of Fort Worth



Jesica McEachern
Assistant City Manager

DATE: 02/26/2026

ENGINEER

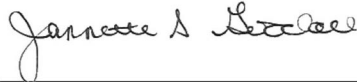
Garver LLC



Daniel N. Olson, P.E.
Vice President

DATE: 02/12/2026

ATTEST:



Jannette Goodall
City Secretary

APPROVAL RECOMMENDED:



Christopher Harder (Feb 17, 2026 05:44:34 CST)

Chris Harder, P.E.
Director, Water Department

Contract Compliance Manager:

By signing, I acknowledge that I am the person responsible for the monitoring and administration of this contract, including ensuring all performance and reporting requirements.

Bijay Upreti

Digitally signed by Bijay Upreti
DN: cn=US, e=bijay.upreti@fortworthtexas.gov,
cn=Bijay Upreti
Reason: I have reviewed this document
Date: 2026.02.12 11:22:16-06'00'

Bijay Upreti, P.E.
Project Manager

APPROVED AS TO FORM AND LEGALITY:



Douglas Black (Feb 19, 2026 00:49:29 CST)

Douglas W. Black
Sr. Assistant City Attorney

M&C No. #: N/A

M&C Date: N/A

**OFFICIAL RECORD
CITY SECRETARY
FT. WORTH, TX**



500 West 7th Street
Suite 803
Fort Worth, TX 76102
TEL 817.740.9575

www.GarverUSA.com

January 28, 2026

Mr. Bijay Upreti, P.E.
City of Fort Worth Water Department
311 W 10th Street
Fort Worth, TX 76102

Re: Siting Study for Northside III Elevated Storage Tank - Amendment No. 2
CPN 104290, CSC# 58012

Dear Mr. Upreti:

Enclosed with this letter is the request for Amendment No. 2 for the above-mentioned project.

On January 20, 2026, the City provided mark-ups for the revised electrical easement to serve Northside II Elevated Storage Tank. These documents were forwarded to our surveyor to incorporate into final easement documents for execution by the City and private property owner. Garver was asked to provide Amendment #2 for compensation to complete said electrical easement and additional labor required to review submittals throughout the Construction Phase. The City authorized Garver to invoice other Construction Phase tasks to keep the submittals and project progress moving forward with the intent of submitting Amendment #2 for approval after the terms of the electrical easement were agreed upon. Amendment #1 included the review of 5 submittals, while the contractor has submitted 42 to date.

This work is anticipated to align with the basic scope of services outlined in the original agreement. Construction phase services shown are consistent with the City standard scope of services language and represent City led construction inspection and administration. Elevated Storage Tanks are unique construction projects and Garver has elevated tank inspectors and can provide this service upon request if the City prefers to outsource these services.

The proposed fee and increase to the Contract is detailed in the table below:

Original Contract Amount	\$67,265.00
Amendment No. 1	\$349,055.00
Additional Amount Requested (Amendment No. 2)	<u>\$46,076.00</u>
Proposed Contract Total Amount	\$462,396.00

Mr. Upreti
1/26/2026
Page 2 of 2

Please feel free to contact me with any questions.

Sincerely,

GARVER

A handwritten signature in blue ink, appearing to read 'KH', is positioned above the printed name.

Kyle Hogue, P.E.
Senior Project Manager

Attachments: Level of Effort Worksheet

Level of Effort Spreadsheet
TASK/HOUR BREAKDOWN
Design Services for
Northside III EST - Amendment #2
City Project No. 104290

Task No.	Task Description	Labor (hours)												Expense				Total Expense Task Sub Total
		Project Director	Project Manager	Project Engineer	Site Civil Lead	Site Civil Engineer	Process Lead	Process Engineer	Electrical Lead	Electrical Engineer	Structural Lead	Structural Engineer	Total Labor Cost	Subconsultant MWBE	Non-MWBE	Travel	Reproduction	
6.0	Construction Phase Services	Rate	0	2	24	4							\$43,798	\$0	\$0	\$200	\$0	\$43,998
6.1	Construction Support			2	4								\$1,378			\$200		\$1,578
6.1.3	Project Site Visits (2)																	
6.1.4	Submittal Review (45)			20	4		12		60		12		\$42,420				\$0	\$42,420
7.0	ROW/Easement Services		0	0	2	0	0	0	0	0	0	0	\$428	\$1,500	\$0	\$0	\$0	\$1,928
7.2	Right-of-Way/Easement Revisions			2	2								\$428	\$1,500	\$0			\$1,928
	Totals	0	2	26	4	12	4	60	4	60	12	80	\$44,226	\$1,500	\$0	\$200	\$0	\$45,926

Project Summary	
Total Hours	264
Total Labor	\$44,226
Total Expense	\$1,700
MBE/SBE Subconsultant	\$1,500
Non-MBE/SBE Subconsultant	\$0
10% Sub Market	\$150
MBE/SBE Participation 3.3%	
Total Project Cost	\$46,076



City Secretary's Office
Contract Routing & Transmittal Slip

Contractor's Name: Garver LLC

Subject of the Agreement: Northside III Elevated Storage Tank

M&C Approved by the Council? * Yes ☐ No ☒

If so, the M&C must be attached to the contract.

Is this an Amendment to an Existing contract? Yes ☒ No ☐ 58012-A2

If so, provide the original contract number and the amendment number.

Is the Contract "**Permanent**"? *Yes ☒ No ☐

If unsure, see back page for permanent contract listing.

Is this entire contract **Confidential**? *Yes ☐ No ☒ *If only specific information is Confidential, please list what information is Confidential and the page it is located.*

Effective Date: 2/12/2026

If different from the approval date.

Expiration Date: N/A

If applicable.

Is a 1295 Form required? * Yes ☐ No ☒

**If so, please ensure it is attached to the approving M&C or attached to the contract.*

Project Number: *If applicable.* 104290

*Did you include a Text field on the contract to add the City Secretary Contract (CSC) number? Yes ☒ No ☐

Contracts need to be routed for CSO processing in the following order:

1. Katherine Cenicola (Approver)
2. Jannette S. Goodall (Signer)
3. Allison Tidwell (Form Filler)

**Indicates the information is required and if the information is not provided, the contract will be returned to the department.*